

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 876

Introduced by Hallstrom, 1.

Read first time January 08, 2026

Committee:

1 A BILL FOR AN ACT relating to protection orders; to amend section
2 29-4315, Revised Statutes Cumulative Supplement, 2024, and sections
3 26-102, 26-114, 28-311.04, 28-358.01, 28-1205, 28-1206, 29-2292,
4 42-927, and 60-3209, Revised Statutes Supplement, 2025; to adopt the
5 Immediate Protection from Abuse Act; to eliminate an unnecessary
6 definition in the Protection Orders Act; to provide that the
7 presence of a respondent at a show cause hearing under such act is
8 sufficient notice of a protection order and further service is not
9 required; to harmonize provisions; and to repeal the original
10 sections.

11 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Sections 1 to 8 of this act shall be known and may be
2 cited as the Immediate Protection from Abuse Act.

3 **Sec. 2.** For purposes of the Immediate Protection from Abuse Act:

4 (1) Domestic assault offense means any offense under section 28-323;

5 (2) Family or household members has the same meaning as in section
6 42-903;

7 (3) Household pet has the same meaning as in section 26-102;

8 (4) Law enforcement agency has the same meaning as in section
9 81-1401;

10 (5) Law enforcement officer has the same meaning as in section
11 81-1401;

12 (6) Protected person means an individual who is protected by an
13 immediate protective order;

14 (7) Restrained person means an individual who is arrested for a
15 domestic assault offense or a sexual assault offense;

16 (8) Sexual assault offense has the same meaning as in section
17 26-102; and

18 (9) Victim means an individual who is the victim of a domestic
19 assault offense or a sexual assault offense.

20 **Sec. 3.** (1) A law enforcement officer may issue an immediate
21 protective order against a restrained person when:

22 (a) The law enforcement officer has arrested the restrained person
23 for a domestic assault offense or a sexual assault offense; and

24 (b) The officer has reasonable grounds to believe that the
25 restrained person poses a threat of harm against the victim of such
26 offense or a family or household member of the victim.

27 (2) All immediate protective orders shall be issued using the
28 standard form developed under section 4 of this act.

29 (3) Unless earlier dissolved under section 6 of this act, an
30 immediate protective order shall expire at 11:59 p.m. on the third day
31 after it is issued. If such date is a day that courts are not in session,

1 the order shall remain in effect until 11:59 p.m. on the next day that
2 courts are in session.

3 **Sec. 4.** (1) The State Court Administrator shall develop a standard
4 form for immediate protective orders to be used under the Immediate
5 Protection from Abuse Act. The administrator shall develop forms in
6 English and may develop forms for other languages spoken by Nebraska
7 residents.

8 (2) An immediate protective order shall provide that the restrained
9 person is:

10 (a) Prohibited from imposing any restraint upon the victim or upon
11 the liberty of the victim or any family or household member of the
12 victim;

13 (b) Prohibited from threatening, assaulting, molesting, attacking,
14 or otherwise disturbing the peace of the victim or any family or
15 household member of the victim;

16 (c) Prohibited from telephoning, contacting, or otherwise
17 communicating with the victim or any family or household member of the
18 victim;

19 (d) Prohibited from entering the residence of the victim or any
20 family or household member of the victim, regardless of the ownership of
21 the residence;

22 (e) Ordered to stay away from any place specified by the law
23 enforcement officer;

24 (f) Prohibited from possessing or purchasing a firearm as defined in
25 section 28-1201;

26 (g) Directed to relinquish sole possession to the victim or any
27 family or household member of the victim of any household pet owned,
28 possessed, leased, kept, or held by the victim or any family or household
29 member residing in the household of the victim; and

30 (h) Prohibited from coming into contact with, harming, or killing
31 any household pet owned, possessed, leased, kept, or held by the victim

1 or any family or household member of the victim.

2 (3) An immediate protective order shall also include:

3 (a) A statement of the grounds asserted for the order;

4 (b) A statement of who is protected by the order;

5 (c) The date and time the order expires;

6 (d) The address of the court in which the victim may file a petition
7 for a protection order under the Protection Orders Act or the restrained
8 person may file a motion to dissolve under section 6 of this act;

9 (e) A statement in substantially the following form: "To the person
10 protected by this order: This order will last only until the date and
11 time noted above. This order may expire earlier if a court determines it
12 should not have been issued. If you wish to seek continuing protection,
13 you must apply for a protection order from the court, at the address
14 noted above. You may seek the advice of an attorney about any matter
15 connected with your application for any future court orders. The attorney
16 should be consulted promptly so that the attorney may assist you in
17 making your application."; and

18 (f) A statement in substantially the following form: "To the person
19 restrained by this order: This order will last until the date and time
20 noted above. A court will review this order to ensure it was issued
21 properly. You may also file a motion seeking to dissolve this order prior
22 to its expiration date. The protected person may, however, obtain a more
23 permanent protection order from the court. You may seek the advice of an
24 attorney about any matter connected with filing a motion to dissolve this
25 order or responding to an application for a more permanent protection
26 order. The attorney should be consulted promptly so that the attorney may
27 assist you."

28 **Sec. 5.** (1) When a law enforcement officer issues an immediate
29 protective order, the officer shall:

30 (a) Serve a copy on the restrained person;

31 (b) Make reasonable efforts to provide a copy to the protected

1 person or, if the protected person is a minor, to a parent or guardian of
2 the minor. If a parent or guardian cannot be located or is the restrained
3 person, the officer may provide a copy to any person having temporary
4 custody of the minor;

5 (c) File a copy of the order with the clerk of the district court as
6 soon as practicable; and

7 (d) Forward a copy of the order to the presiding judge for review
8 under section 6 of this act.

9 (2) When an immediate protective order is filed with the clerk of
10 the district court, the clerk shall, as soon as practicable, cause the
11 order to be entered into the court's electronic case management system
12 and any database for protection and restraining orders maintained by the
13 court.

14 **Sec. 6.** (1)(a) Upon receipt of a copy of an immediate protective
15 order, the presiding judge shall review the order and may affirm, modify,
16 or dissolve the order as provided in this section.

17 (b) The restrained person may also file a motion with the district
18 court requesting to dissolve or modify an immediate protective order. The
19 hearing on the motion shall be given precedence on the docket of the
20 court. The court shall make a reasonable effort to provide notice of the
21 motion to the law enforcement officer that issued the order and to any
22 protected person, but the court may hear the matter ex parte if the
23 interests of justice require.

24 (2) Upon its own review or pursuant to a motion filed under this
25 section, the court may dissolve an immediate protective order only if the
26 court finds, by clear and convincing evidence, that:

27 (a) The restrained person did not commit a sexual assault offense or
28 domestic assault offense; or

29 (b) The restrained person does not pose a threat of harm to a
30 protected person or any family or household member of such person.

31 (3) Upon its own review or pursuant to a motion filed under this

1 section, the court may modify an immediate protective order if the
2 interests of justice require and the court finds, by clear and convincing
3 evidence, that such modification will not result in any increased risk of
4 harm to a protected person or a family or household member of a protected
5 person.

6 (4) Unless earlier dissolved under this section, an immediate
7 protection order shall expire at the time provided in section 3 of this
8 act. The duration of an immediate protection order shall not be extended
9 by any proceedings under this section.

10 (5) Any decision of a court under this section:

11 (a) Shall have no effect on the ability of a person to file a
12 petition for a protection order under the Protection Orders Act;

13 (b) Shall have no effect on any prosecution for a criminal offense;
14 and

15 (c) Shall not be admissible in any other criminal or civil
16 proceeding and shall be given no consideration in any other criminal or
17 civil proceeding.

18 **Sec. 7.** A restrained person who knowingly violates an immediate
19 protective order shall be guilty of an offense and punished as follows:

20 (1) For a first violation of this section, such person shall be
21 guilty of a Class I misdemeanor; and

22 (2) For a second or subsequent violation of this section, such
23 person shall be guilty of a Class IV felony.

24 **Sec. 8.** A law enforcement officer shall, with or without a warrant,
25 arrest a person if:

26 (1) The officer has probable cause to believe that the person has
27 committed a violation of an immediate protective order; and

28 (2) Any person provides the officer with a copy of such order or the
29 officer determines that such an order exists and remains in effect after
30 communicating with a law enforcement agency.

31 **Sec. 9.** Section 26-102, Revised Statutes Supplement, 2025, is

1 amended to read:

2 26-102 For purposes of the Protection Orders Act:

3 (1) Abuse has the same meaning as in section 42-903;

4 ~~(2) Course of conduct has the same meaning as in section 28-311.02;~~

5 (2) ~~(3)~~ Family or household members has the same meaning as in
6 section 42-903;

7 (3) ~~(4)~~ Harass has the same meaning as in section 28-311.02;

8 (4) ~~(5)~~ Household pet means any animal maintained for companionship
9 or pleasure but does not include any animal kept primarily for commercial
10 purposes or for consumption or any livestock animal as defined in section
11 54-902;

12 (5) ~~(6)~~ Law enforcement agency means the police department or town
13 marshal in incorporated municipalities, the office of the sheriff in
14 unincorporated areas, and the Nebraska State Patrol; and

15 (6) ~~(7)~~ Sexual assault offense means:

16 (a) Conduct amounting to sexual assault under section 28-319 or
17 28-320, sexual abuse by a school worker under section 28-316.01, sexual
18 assault of a child under section 28-319.01 or 28-320.01, a violation of
19 section 28-311.08, or an attempt to commit any of such offenses; or

20 (b) Subjecting or attempting to subject another person to sexual
21 contact or sexual penetration without such person's consent, as such
22 terms are defined in section 28-318.

23 **Sec. 10.** Section 26-114, Revised Statutes Supplement, 2025, is
24 amended to read:

25 26-114 (1)(a) Upon the issuance of a temporary ex parte protection
26 order or final protection order, the clerk of the court shall forthwith
27 provide, free of charge:

28 (i) The petitioner with two certified copies of such order;

29 (ii) The local police department or local law enforcement agency and
30 the local sheriff's office with one copy each of such order and one copy
31 each of the sheriff's return thereon; and

1 (iii) A copy of the protection order to the sheriff's office in the
2 county where the respondent may be personally served, together with
3 instructions for service.

4 (b) Upon receipt of the order and instructions for service, the
5 sheriff's office in the county where the respondent may be personally
6 served shall forthwith serve the protection order upon the respondent and
7 file its return thereon with the clerk of the court which issued the
8 protection order within fourteen days of the issuance of the protection
9 order.

10 (2) If any protection order is dismissed or modified by the court,
11 the clerk of the court shall forthwith provide the local police
12 department or local law enforcement agency and the local sheriff's
13 office, without charge, with one copy each of the order of dismissal or
14 modification.

15 (3) Any document required to be provided under this section,
16 including certified copies of protection orders, may be provided
17 electronically.

18 (4) If the respondent was present at a hearing convened pursuant to
19 ~~section 26-108 or 26-109 following issuance of an ex parte protection~~
20 ~~order and the court entered a final protection order at such hearing was~~
21 ~~not dismissed~~, the respondent shall be deemed to have notice ~~of by the~~
22 ~~court at such hearing that~~ the protection order ~~will be granted and~~
23 ~~remain in effect~~ and further service of notice described in this section
24 is not required for purposes of prosecution under section 26-118.

25 **Sec. 11.** Section 28-311.04, Revised Statutes Supplement, 2025, is
26 amended to read:

27 28-311.04 (1) Except as provided in subsection (2) of this section,
28 any person convicted of violating section 28-311.03 is guilty of a Class
29 I misdemeanor.

30 (2) Any person convicted of violating section 28-311.03 is guilty of
31 a Class IIIA felony if:

1 (a) The person has a prior conviction under such section or a
2 substantially conforming criminal violation within the last seven years;

3 (b) The victim is under sixteen years of age;

4 (c) The person possessed a deadly weapon at any time during the
5 violation;

6 (d) At any time during the violation, the ~~The~~ person was also in
7 violation of any protection order issued under the Protection Orders Act,
8 ~~a or any~~ valid foreign protection order recognized pursuant to section
9 26-123 or 26-124 or an immediate protective order issued under the
10 Immediate Protection from Abuse Act ~~at any time during the violation~~; or

11 (e) The person has been convicted of any felony in this state or has
12 been convicted of a crime in another jurisdiction which, if committed in
13 this state, would constitute a felony and the victim or a family or
14 household member of the victim was also the victim of such previous
15 felony.

16 **Sec. 12.** Section 28-358.01, Revised Statutes Supplement, 2025, is
17 amended to read:

18 28-358.01 (1) Isolation means intentional acts (a) committed for the
19 purpose of preventing, and which do prevent, a vulnerable adult or senior
20 adult from having contact with family, friends, or concerned persons; (b)
21 committed to prevent a vulnerable adult or senior adult from receiving
22 his or her mail or telephone calls; (c) of physical or chemical restraint
23 of a vulnerable adult or senior adult committed for purposes of
24 preventing contact with visitors, family, friends, or other concerned
25 persons; or (d) which restrict, place, or confine a vulnerable adult or
26 senior adult in a restricted area for purposes of social deprivation or
27 preventing contact with family, friends, visitors, or other concerned
28 persons.

29 (2) Isolation does not include (a) medical isolation prescribed by a
30 licensed physician caring for the vulnerable adult or senior adult; (b)
31 action taken in compliance with a protection order issued under the

1 Protection Orders Act, a valid foreign protection order recognized
2 pursuant to section 26-123 or 26-124, an immediate protective order
3 issued under the Immediate Protection from Abuse Act, or an order
4 excluding a person from certain premises issued pursuant to section
5 42-357; or (c) action authorized by an administrator of a nursing home
6 pursuant to section 71-6021.

7 **Sec. 13.** Section 28-1205, Revised Statutes Supplement, 2025, is
8 amended to read:

9 28-1205 (1)(a) Any person who uses a firearm, a knife, brass or iron
10 knuckles, or any other deadly weapon to commit any felony which may be
11 prosecuted in a court of this state commits the offense of use of a
12 deadly weapon to commit a felony.

13 (b) Use of a deadly weapon, other than a firearm, to commit a felony
14 is a Class II felony.

15 (c) Use of a deadly weapon, which is a firearm, to commit a felony
16 is a Class IC felony.

17 (2)(a) Any person who possesses a firearm, a knife, brass or iron
18 knuckles, or a destructive device during the commission of any felony
19 which may be prosecuted in a court of this state commits the offense of
20 possession of a deadly weapon during the commission of a felony.

21 (b) Possession of a deadly weapon, other than a firearm, during the
22 commission of a felony is a Class III felony.

23 (c) Possession of a deadly weapon, which is a firearm, during the
24 commission of a felony is a Class II felony.

25 (3)(a) Any person who carries a firearm or a destructive device
26 during the commission of a dangerous misdemeanor commits the offense of
27 carrying a firearm or destructive device during the commission of a
28 dangerous misdemeanor.

29 (b) A violation of this subsection is a:

30 (i) Class I misdemeanor for a first or second offense; and

31 (ii) A Class IV felony for any third or subsequent offense.

1 (4) A violation of this section shall be treated as a separate and
2 distinct offense from the underlying crimes being committed, and a
3 sentence imposed under this section shall be consecutive to any other
4 sentence imposed.

5 (5) Possession of a deadly weapon may be proved through evidence
6 demonstrating either actual or constructive possession of a firearm, a
7 knife, brass or iron knuckles, or a destructive device during,
8 immediately prior to, or immediately after the commission of a felony.

9 (6) For purposes of this section:

10 (a) Dangerous misdemeanor means a misdemeanor violation of any of
11 the following offenses:

12 (i) Stalking under section 28-311.03;

13 (ii) Knowing violation of any protection order issued under the
14 Protection Orders Act or an immediate protective order issued under the
15 Immediate Protection from Abuse Act;

16 (iii) Domestic assault under section 28-323;

17 (iv) Assault of an unborn child in the third degree under section
18 28-399;

19 (v) Theft by shoplifting under section 28-511.01;

20 (vi) Unauthorized use of a propelled vehicle under section 28-516;

21 (vii) Criminal mischief under section 28-519 if such violation
22 arises from an incident involving the commission of a misdemeanor crime
23 of domestic violence;

24 (viii) Impersonating a police officer under section 28-610;

25 (ix) Resisting arrest under section 28-904;

26 (x) Operating a motor vehicle or vessel to avoid arrest under
27 section 28-905;

28 (xi) Obstructing a peace officer under section 28-906; or

29 (xii) Any attempt under section 28-201 to commit an offense
30 described in subdivisions (6)(a)(i) through (xi) of this section;

31 (b) Destructive device has the same meaning as in section 28-1213;

1 (c) Misdemeanor crime of domestic violence has the same meaning as
2 in section 28-1206; and

3 (d) Use of a deadly weapon includes the discharge, employment, or
4 visible display of any part of a firearm, a knife, brass or iron
5 knuckles, any other deadly weapon, or a destructive device during,
6 immediately prior to, or immediately after the commission of a felony or
7 communication to another indicating the presence of a firearm, a knife,
8 brass or iron knuckles, any other deadly weapon, or a destructive device
9 during, immediately prior to, or immediately after the commission of a
10 felony, regardless of whether such firearm, knife, brass or iron
11 knuckles, deadly weapon, or destructive device was discharged, actively
12 employed, or displayed.

13 **Sec. 14.** Section 28-1206, Revised Statutes Supplement, 2025, is
14 amended to read:

15 28-1206 (1) A person commits the offense of possession of a deadly
16 weapon by a prohibited person if he or she:

17 (a) Possesses a firearm, a knife, or brass or iron knuckles and he
18 or she:

19 (i) Has previously been convicted of a felony;

20 (ii) Is a fugitive from justice;

21 (iii) Is the subject of a current and valid protection order issued
22 under the Protection Orders Act, ~~or~~ a current and valid foreign
23 protection order recognized under section 26-123 or 26-124, or a current
24 and valid immediate protective order issued under the Immediate
25 Protection from Abuse Act and is knowingly violating such order; or

26 (iv) Is on probation pursuant to a deferred judgment for a felony
27 under section 29-2292 or 29-4803; or

28 (b) Possesses a firearm or brass or iron knuckles and he or she has
29 been convicted within the past seven years of a misdemeanor crime of
30 domestic violence.

31 (2) The felony conviction may have been had in any court in the

1 United States, the several states, territories, or possessions, or the
2 District of Columbia.

3 (3)(a) Possession of a deadly weapon which is not a firearm by a
4 prohibited person is a Class III felony.

5 (b) Possession of a deadly weapon which is a firearm by a prohibited
6 person is a Class ID felony for a first offense and a Class IB felony for
7 a second or subsequent offense.

8 (4) Subdivision (1)(a)(i) of this section shall not prohibit:

9 (a) Possession of archery equipment for lawful purposes; or

10 (b) If in possession of a recreational license, possession of a
11 knife for purposes of butchering, dressing, or otherwise processing or
12 harvesting game, fish, or furs.

13 (5)(a) For purposes of this section, misdemeanor crime of domestic
14 violence means a crime that:

15 (i) Is classified as a misdemeanor under the laws of the United
16 States or the District of Columbia or the laws of any state, territory,
17 possession, or tribe;

18 (ii) Has, as an element, the use or attempted use of physical force
19 or the threatened use of a deadly weapon; and

20 (iii) Is committed by another against his or her spouse, his or her
21 former spouse, a person with whom he or she has a child in common whether
22 or not they have been married or lived together at any time, or a person
23 with whom he or she is or was involved in a dating relationship as
24 defined in section 28-323.

25 (b) For purposes of this section, misdemeanor crime of domestic
26 violence also includes the following offenses, if committed by a person
27 against his or her spouse, his or her former spouse, a person with whom
28 he or she is or was involved in a dating relationship as defined in
29 section 28-323, or a person with whom he or she has a child in common
30 whether or not they have been married or lived together at any time:

31 (i) Assault in the third degree under section 28-310;

- 1 (ii) Stalking under subsection (1) of section 28-311.04;
- 2 (iii) False imprisonment in the second degree under section 28-315;
- 3 (iv) First offense domestic assault in the third degree under
- 4 subsection (1) of section 28-323; or
- 5 (v) Any attempt or conspiracy to commit any of such offenses.
- 6 (c) A person shall not be considered to have been convicted of a
- 7 misdemeanor crime of domestic violence unless:
- 8 (i) The person was represented by counsel in the case or knowingly
- 9 and intelligently waived the right to counsel in the case; and
- 10 (ii) In the case of a prosecution for a misdemeanor crime of
- 11 domestic violence for which a person was entitled to a jury trial in the
- 12 jurisdiction in which the case was tried, either:
- 13 (A) The case was tried to a jury; or
- 14 (B) The person knowingly and intelligently waived the right to have
- 15 the case tried to a jury.
- 16 (6) In addition, for purposes of this section:
- 17 (a) Archery equipment means:
- 18 (i) A longbow, recurve bow, compound bow, or nonelectric crossbow
- 19 that is drawn or cocked with human power and released by human power; and
- 20 (ii) Target or hunting arrows, including arrows with broad, fixed,
- 21 or removable heads or that contain multiple sharp cutting edges; and
- 22 (b) Recreational license means a state-issued license, certificate,
- 23 registration, permit, tag, sticker, or other similar document or
- 24 identifier evidencing permission to hunt, fish, or trap for furs in the
- 25 State of Nebraska.

26 **Sec. 15.** Section 29-2292, Revised Statutes Supplement, 2025, is

27 amended to read:

28 29-2292 (1) Upon a finding of guilt for which a judgment of

29 conviction may be rendered, a defendant may request the court defer the

30 entry of judgment of conviction. Upon such request and after giving the

31 prosecutor and defendant the opportunity to be heard, the court may defer

1 the entry of a judgment of conviction and the imposition of a sentence
2 and place the defendant on probation, upon conditions as the court may
3 require under section 29-2262.

4 (2) The court shall not defer judgment under this section if:

5 (a) The offense is a violation of a domestic abuse protection order
6 under section 26-118 or an immediate protective order under section 7 of
7 this act;

8 (b) The victim of the offense is an intimate partner as defined in
9 section 28-323;

10 (c) The offense is a violation of section 60-6,196 or 60-6,197 or a
11 city or village ordinance enacted in conformance with section 60-6,196 or
12 60-6,197;

13 (d) The defendant is not eligible for probation; or

14 (e) For any driver holding a commercial driver's license or CLP-
15 commercial learner's permit issued pursuant to the Motor Vehicle
16 Operator's License Act, such deferred judgment would mask the conviction
17 and lead to noncompliance with federal law or regulation and subject this
18 state to possible loss of federal money.

19 (3) Whenever a court considers a request to defer judgment, the
20 court shall consider the factors set forth in section 29-2260 and any
21 other information the court deems relevant.

22 (4) Except as otherwise provided in this section and sections
23 29-2293 and 29-2294, the supervision of a defendant on probation pursuant
24 to a deferred judgment shall be governed by the Nebraska Probation
25 Administration Act and sections 29-2270 to 29-2273.

26 (5) After a hearing providing the prosecutor and defendant an
27 opportunity to be heard and upon a finding that a defendant has violated
28 a condition of his or her probation, the court may enter any order
29 authorized by section 29-2268 or pronounce judgment and impose such new
30 sentence as might have been originally imposed for the offense for which
31 the defendant was convicted.

1 (6) Upon satisfactory completion of the conditions of probation and
2 the payment or waiver of all administrative and programming fees assessed
3 under section 29-2293, the defendant or prosecutor may file a motion to
4 withdraw any plea entered by the defendant and to dismiss the action
5 without entry of judgment.

6 (7) The provisions of this section apply to offenses committed on or
7 after July 1, 2020. For purposes of this section, an offense shall be
8 deemed to have been committed prior to July 1, 2020, if any element of
9 the offense occurred prior to such date.

10 **Sec. 16.** Section 29-4315, Revised Statutes Cumulative Supplement,
11 2024, is amended to read:

12 29-4315 (1) Upon an initial interaction with a victim relating to or
13 arising from a sexual assault of such victim, a health care provider or
14 peace officer, and in the case of a victim under eighteen years of age,
15 the Department of Health and Human Services, shall provide the victim
16 with information that explains the rights of victims under the Sexual
17 Assault Victims' Bill of Rights Act and other relevant law. The
18 information shall be presented in clear language that is comprehensible
19 to a person proficient in English at the fifth grade level, accessible to
20 persons with visual disabilities, and available in all major languages
21 spoken in this state. This information shall include, but not be limited
22 to:

23 (a) A clear statement that a victim is not required to participate
24 in the criminal justice system or to undergo a medical evidentiary or
25 physical examination in order to retain the rights provided by the act
26 and other relevant law;

27 (b) Contact information for appropriate services provided by
28 professionals in the fields of domestic violence and sexual assault,
29 including advocates;

30 (c) State and federal relief available to victims of crime;

31 (d) Law enforcement protection available to the victim, including

1 immediate protective orders, domestic violence protection orders,
2 harassment protection orders, and sexual assault protection orders and
3 the process to obtain such protection;

4 (e) Instructions for requesting information regarding the victim's
5 sexual assault forensic evidence as provided in section 29-4313; and

6 (f) State and federal compensation funds for medical and other costs
7 associated with the sexual assault and information on any municipal,
8 state, or federal right to restitution for a victim in the event of a
9 conviction.

10 (2) The information to be provided under subsection (1) of this
11 section shall be developed by the Attorney General and the Nebraska
12 Commission on Law Enforcement and Criminal Justice with input from
13 prosecutors, sexual assault victims, and organizations with a statewide
14 presence with expertise on domestic violence, sexual assault, and child
15 sexual assault.

16 (3) The information to be provided under subsection (1) of this
17 section shall be made available for viewing and download on the websites
18 of the Department of Health and Human Services and the Nebraska
19 Commission on Law Enforcement and Criminal Justice. Other relevant state
20 agencies are also encouraged to make such information available on their
21 websites.

22 **Sec. 17.** Section 42-927, Revised Statutes Supplement, 2025, is
23 amended to read:

24 42-927 All law enforcement agencies in the state shall provide
25 officers employed by them with an education and training program designed
26 to inform the officers of the problems of domestic abuse, procedures to
27 deal with such problems, the Immediate Protection from Abuse Act, the
28 Protection from Domestic Abuse Act, the Protection Orders Act, and the
29 services and facilities available to abused family and household members.

30 **Sec. 18.** Section 60-3209, Revised Statutes Supplement, 2025, is
31 amended to read:

1 60-3209 (1) Captured plate data held by a governmental entity is not
2 considered a public record for purposes of sections 84-712 to 84-712.09
3 and shall only be disclosed to the person to whom the vehicle is
4 registered or with the prior written consent of the person to whom the
5 vehicle is registered or pursuant to a disclosure order under subsection
6 (2) of section 60-3205 or as the result of a match pursuant to subsection
7 (2) of section 60-3203.

8 (2) Upon the presentation to a governmental entity of a valid,
9 outstanding protection order pursuant to the Protection Orders Act or the
10 Uniform Interstate Enforcement of Domestic Violence Protection Orders Act
11 or an immediate protective order issued under the Immediate Protection
12 from Abuse Act protecting the driver of a vehicle jointly registered with
13 or registered solely in the name of the individual against whom the order
14 was issued, captured plate data may not be disclosed except pursuant to a
15 disclosure order under subsection (2) of section 60-3205 or as the result
16 of a match pursuant to subsection (2) of section 60-3203.

17 **Sec. 19.** Original section 29-4315, Revised Statutes Cumulative
18 Supplement, 2024, and sections 26-102, 26-114, 28-311.04, 28-358.01,
19 28-1205, 28-1206, 29-2292, 42-927, and 60-3209, Revised Statutes
20 Supplement, 2025, are repealed.